Regulations was published in the FEDERAL REGISTER on December 13, 1957 (22 F. R. 10,018); pursuant to section 4 of the Administrative Procedure Act (5 U. S. C. 1003). No data, views, or comments relating to the proposed amendment have been received and the regulation as set forth above is hereby adopted, effective 30 days after the date of publication in the FEDERAL REGISTER.

When customs Forms 5125 and 7603 are reprinted the wording will be changed to conform to the above change in § 10.59 (e). Present stocks of the forms may be used after the effective date of this regulation provided the required change in wording is made. All outstanding term bonds on customs Form 7603, the effective date of which has not expired on the date this regulation goes into effect shall be changed accordingly by a stipulation in writing concurred in by the sureties.

(R. S. 161, 251, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 66, 1624. Interprets or applies sec. 309, 46 Stat. 690, as amended; 19 U. S. C. 1309)

[SEAL] ROBERT KELLY,
*Commissioner of Customs.*

Approved: March 4, 1958.

A. GILMORE FLUES,
*Acting Secretary of the Treasury.*

[F. R. Doc. 58-1835; Filed, Mar. 11, 1958; 8:50 a. m.]

## TITLE 21—FOOD AND DRUGS

### Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

#### Subchapter B—Food and Food Products

PART 120—TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

TOLERANCE FOR RESIDUES OF SODIUM DEHYDROACETATE

A petition was filed with the Food and Drug Administration requesting the establishment of a tolerance for residues of sodium dehydroacetate in or on strawberries.

The Secretary of Agriculture has certified that this pesticide chemical is useful for the purposes for which a tolerance is being established.

After consideration of the data submitted in the petition and other relevant material which show that the tolerance established in this order will protect the public health, and by virtue of the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 408 (d) (2), 68 Stat. 512; 21 U. S. C. 346a (d) (2)) and delegated to the Commissioner of Food and Drugs by the Secretary (21 CFR 120.7 (g)), the regulations for tolerances for pesticide chemicals in or on raw agricultural commodities (21 CFR Part 120) are amended by adding the following new section:

§ 120.159 *Tolerance for residues of sodium dehydroacetate.* A tolerance of 65 parts per million is established for residues of sodium dehydroacetate, as dehydroacetic acid, in or on strawberries from post-harvest application.

Any person who will be adversely affected by the foregoing order may, at any time prior to the thirtieth day from the effective date thereof, file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington 25, D. C., written objections thereto. Objections shall show wherein the person filing will be adversely affected by this order, specify with particularity the provisions of the order deemed objectionable and reasonable grounds for the objections, and request a public hearing upon the objections. Objections may be accompanied by a memorandum or brief in support thereof. All documents shall be filed in quintuplicate.

*Effective date.* This order shall be effective upon publication in the FEDERAL REGISTER.

(Sec. 408, 68 Stat. 512; 21 U. S. C. 346a)

Dated March 6, 1958.

[SEAL] GEO. P. LARRICK,
*Commissioner of Food and Drugs.*

[F. R. Doc. 58-1833; Filed, Mar. 11, 1958; 8:50 a. m.]

## TITLE 36—PARKS, FORESTS, AND MEMORIALS

### Chapter III—Corps of Engineers, Department of the Army

PART 311—PUBLIC USE OF CERTAIN RESERVOIR AREAS

GAVINS POINT RESERVOIR AREA, MISSOURI RIVER, S. DAK. AND NEBR.

The Secretary of the Army having determined that the use of the Gavins Point Reservoir Area (Lewis and Clark Lake), Missouri River, South Dakota and Nebraska, by the general public for boating, swimming, bathing, fishing and other recreational purposes will not be contrary to the public interest and will not be inconsistent with the operation and maintenance of the reservoir for its primary purposes, hereby prescribes rules and regulations for its public use, pursuant to the provisions of section 209 of the Flood Control Act of 1954 as follows:

1. Add new paragraph (nnn) to § 311.1:

§ 311.1 *Areas covered.* * * *

(nnn) Gavins Point Reservoir Area (Lewis and Clark Lake), Missouri River, South Dakota and Nebraska.

2. Add new subparagraph (43) to § 311.4 (a):

§ 311.4 *Houseboats.* (a) * * *

(43) Gavins Point Reservoir Area (Lewis and Clark Lake), Missouri River, South Dakota and Nebraska.

3. Add new subparagraph (16) to § 311.6 (b):

§ 311.6 *Hunting and fishing.* * * *

(b) * * *

(16) Gavins Point Reservoir Area (Lewis and Clark Lake), Missouri River, South Dakota and Nebraska.

[Regs., February 13, 1958, ENGWO] (Sec. 209, 68 Stat. 1266; 16 U. S. C. 460d)

[SEAL] HERBERT M. JONES,
*Major General, U. S. Army,*
*The Adjutant General.*

[F. R. Doc. 58-1808; Filed, Mar. 11, 1958; 8:45 a. m.]

## TITLE 43—PUBLIC LANDS: INTERIOR

### Chapter I—Bureau of Land Management, Department of the Interior

#### Appendix—Public Land Orders

[Public Land Order 1596]

[New Mexico 038321]

NEW MEXICO

PARTIALLY REVOKING EXECUTIVE ORDER NO. 3889 OF AUGUST 13, 1923, WHICH WITHDREW CERTAIN LANDS FOR USE OF FOREST SERVICE AS ADMINISTRATIVE SITE

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 3889 of August 13, 1923, withdrawing public lands for use of the Forest Service as an administrative site, is hereby revoked so far as it affects the following-described lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 11 N., R. 10 W.,
Sec. 24, N½ of lot 1, lot 9, and N½SE¼.

The area described contains approximately 123 acres.

This revocation is made in furtherance of an exchange under section 8 of the act of June 28, 1934, as amended by section 3 of the act of June 26, 1936 (48 Stat. 1272; 49 Stat. 1976; 43 U. S. C. 315g) by which the offered lands will benefit a Federal land program. This restoration is, therefore, not subject to the provisions contained in the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others.

ROGER ERNST,
*Assistant Secretary of the Interior.*

MARCH 5, 1958.

[F. R. Doc. 58-1813; Filed, Mar. 11, 1958; 8:46 a. m.]